Resolution No. 7397

Resolution to Authorize Independent Fact-finding Regarding the ~~Related to~~ Use of ~~Certain~~ Non-PPS-approved Messaging Platforms

RECITALS

~~A. The Board of Education has reviewed a news report alleging that some PPS employees have used the Signal messaging application to communicate about PPS business. Signal is not a PPS-approved platform for conducting official PPS communications.~~

~~B. Use of non-approved messaging platforms by a PPS employee for some purposes would not necessarily violate PPS policy or state law.~~

~~C. It is in the best interest of PPS to (1) understand whether, how, and why Signal was used by PPS employees; and (2) determine whether any Signal messages sent or received by PPS employees were public records and, if so, whether they are preserved within the application or can otherwise be recovered.~~

~~D. In light of the proliferation of messaging applications, it is in the best interest of PPS for the PPS Board and administration to consider whether any changes to PPS policies and administrative guidance are advisable to provide guidance to PPS employees.~~

WHEREAS, the Portland Public Schools Board of Education ("Board") has reviewed a Willamette Week news report alleging that the Superintendent and Portland Public Schools ("District") "leaders" used the Signal messaging application to communicate about District business, and has also reviewed images of Signal conversations with District leadership and individuals acting on behalf of the District that have been made publicly available online. Signal is an encrypted messaging platform with a disappearing-messages feature and is not a District-approved platform for official District communications;

WHEREAS, it is in the best interest of the District to independently determine whether, how, and why Signal or other non-District-approved messaging platforms were used to conduct District business by the Superintendent, current and/or former District leaders, and/or individuals or entities acting on behalf of the District;

WHEREAS, the Board has an oversight responsibility to ensure compliance with state statutes, District policies, public records requirements, and applicable records-retention laws;

RESOLUTION

~~The Board of Education authorizes and directs the PPS General Counsel to work with outside legal counsel to initiate fact-finding with the following scope and to provide the results of the fact-finding to the Board:~~

NOW, THEREFORE, BE IT RESOLVED, the Board authorizes and directs the District to immediately retain independent legal counsel to advise and represent the Board, and to initiate and manage fact-finding with the following scope and to provide the results of the fact-finding directly and solely to the full Board by December 11, 2026. District General Counsel and District personnel shall provide necessary

records, information, and logistical assistance but will not have authority to direct independent counsel or the fact-finding process.

~~1. Determine whether Signal or other similar applications are used by PPS management employees for matters relating to PPS, including the topics and purposes of such communications.~~

~~2. Determine whether any PPS employees retained information that was transmitted through Signal or similar application and whether that information can be collected and preserved under applicable document retention standards.~~

~~1. Such other matters as follow from the information gathered that relate to compliance with PPS policies and applicable law, or which would inform potential improvements to PPS policies or administrative guidance.~~

1. **Use of messaging platforms:** Determine whether Signal or other non-District-approved messaging platforms were used to conduct District business by the Superintendent and/or District leadership employees, or entities acting on behalf of the District; identify the individuals involved, relevant time periods, and purposes of the communications.
2. **Direction or authorization:** Determine whether the Superintendent and/or District leadership employees, or entities acting on behalf of the District directed employees to use non-PPS-approved messaging platforms to conduct District business.
3. **Records preservation:** Determine whether communications constituted public records or were otherwise subject to District records-retention requirements, whether they were appropriately preserved, and whether deleted, disappearing, or otherwise unavailable communications can be recovered.
4. **Policy and legal compliance:** Assess whether the practices identified were consistent with applicable statutes, District policies, administrative guidance, public records requirements, and records-retention obligations.

BE IT FURTHER RESOLVED, that the District shall immediately preserve all potentially relevant records and information, including electronic communications, attachments, screenshots, and metadata, and take reasonable steps to prevent further deletion or loss.

BE IT FURTHER RESOLVED, that independent counsel will establish a confidential channel and method for direct communication through which current and former employees and others with relevant information may voluntarily provide information and/or documents.

BE IT FURTHER RESOLVED, that independent counsel shall, at all times, report directly to the full Board and provide findings no later than December 11, 2026. If additional time is necessary, independent counsel shall provide an interim report that addresses the scope of fact-finding and proposed completion timeline by that date.

~~3.~~